

ORIGINAL

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No. 15-cv-01068-LTB-KLM

SEAN TRUJILLO,

Plaintiff,

v.

WAL-MART STORES, INC.,

Defendant.

SPECIAL VERDICT FORM

WE THE JURY, in the above-captioned action, present our answers to questions submitted by the court to which we have unanimously agreed:

1. Did Plaintiff Sean Trujillo have injuries, damages or losses?

ANSWER: Yes ☒ No ☐

2. Did Defendant Wal-Mart actually know about a danger on the property or, as a person using reasonable care, should have known about it?

ANSWER: Yes ☐ No ☒

3. Did Defendant fail to use reasonable care to protect against the danger on the property?

ANSWER: Yes ☐ No ☒

4. Was Defendant's failure to use reasonable care to protect against the danger on the property a cause of Plaintiff's injuries, damages or losses?

ANSWER: Yes ☐ No ☒

If your answer to any one or more of the above four questions is "NO," then all jurors should stop and sign the verdict form.

On the other hand, if your answer to the above four questions is "YES," then you shall proceed to answer the following questions.

5. Was Plaintiff's negligence, if any, a cause of his own claimed injuries, damages, or losses?

ANSWER: Yes ____ No ____

6. State your answers to the following questions relating to Plaintiff's damages that were caused by Defendant's failure to use reasonable care, whether or not the damages were also caused by the negligence, if any, of Plaintiff:

a. What is the total amount of Plaintiff's damages, if any, for non-economic losses or injuries, excluding any damages for physical impairment or disfigurement? Non-economic losses or injuries are those losses or injuries as described in numbered Paragraph 1 of Jury Instruction No. 18. You should answer "0" if you determine there were none.

ANSWER: \$ _____

b. What is the total amount of Plaintiff's damages, if any, for economic losses, excluding any damages for physical impairment or disfigurement? Economic losses are those losses described in numbered Paragraph 2 of Jury Instruction No. 18. You should answer "0" if you determine there were none.

ANSWER: \$ _____

c. What is the total amount of Plaintiff's damages, if any, for physical impairment or disfigurement? You should answer "0" if you determine there were none.

ANSWER \$ _____

If your answer to all five Questions, 1, 2, 3, 4, and 5 is "YES" then answer the following

Question 7:

7. Taking as 100% the combined negligence of Defendant and Plaintiff that caused the Plaintiff's injuries, damages, and losses, what percentage of the negligence was Defendant's and what percentage was Plaintiff's?

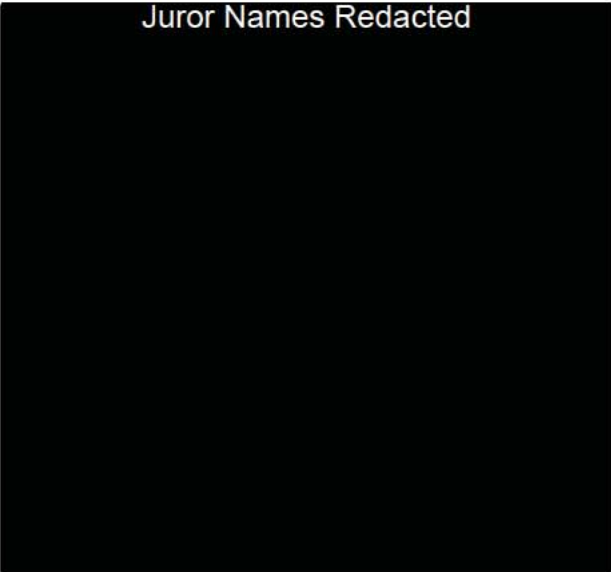
ANSWER: Percentage charged to Defendant Wal-Mart _____%

Percentage charged to Plaintiff Sean Trujillo _____%

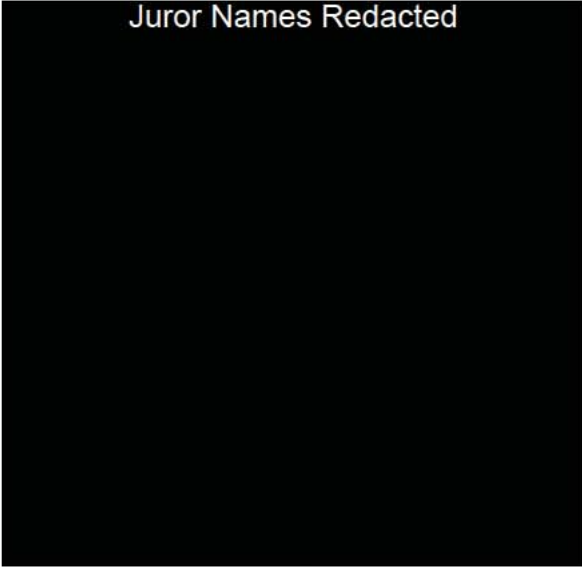
MUST TOTAL: 100%

BY OUR SIGNATURES AND OUR ANSWERS TO THESE QUESTIONS, WE
HEREBY CERTIFY THAT THE ANSWERS ON THIS FORM REPRESENT THE
UNANIMOUS VERDICT OF THE JURY.

Juror Names Redacted



Juror Names Redacted



DATED: January 12, 2017